Incarcerated Juveniles	Number	Page
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Effective/Revision Date:
8/1/2024

Background:
In determining the Medi-Cal eligibility of a juvenile (under the age of 18) in a facility, staff must consider both the disposition status of the juvenile and the type of facility they are in.

Customers incarcerated in a correctional facility who apply for Medi-Cal must be evaluated. Residence in a correctional facility does not disqualify applicants from Medi-Cal, however if otherwise eligible their eligibility must be suspended until they are no longer considered incarcerated. Incarcerated individuals receiving inpatient or mental health services outside of the correctional facility may be eligible to limited scope coverage that pays only for the inpatient or mental health services. This section was updated to include suspense language.

Purpose:
This section provides staff with policy guidance for how to determine Medi-Cal eligibility for Juveniles in correctional facilities.

Policy:
A. Disposition
Disposition is the decision made by the court for the juvenile's welfare. A disposition order is the court decision that the minor will be placed in foster care, sentenced, placed on probation, or released either temporarily or permanently. When the juvenile is determined a "Ward of the Court" and is awaiting foster care placement and not awaiting sentencing for a criminal violation of law, the juvenile is eligible for Medi-Cal. (See MPG Article 5, Section 12 for information on Foster Care).

B. Status Prior to Disposition
- If a juvenile is in a detention center due to criminal activity, they are considered incarcerated must have their eligibility suspended, if currently active.
- If they are in a detention center for care, protection and/or in the best interest of the child and there is a specific plan that makes the stay temporary (1 to 2 months) then they are **not** considered incarcerated.

C. Status After Disposition
- Juveniles on intensive probation with a plan of release, which includes residence in a correctional facility, are considered incarcerated and must have Medi-Cal benefits suspended until released.
- Juveniles placed or awaiting placement, on intensive probation in a residential facility, are not considered incarcerated if the facility is not part of the criminal justice system.

D. Facility
Publicly operated community residences that serve no more than 16 residents are not considered correctional facilities, and juveniles in these facilities are entitled to Medi-Cal if otherwise eligible. These facilities may be psychiatric nursing facilities licensed by the Department of Mental Health or other community care facilities.

Example
A juvenile is detained for criminal activity and is placed on probation with specific conditions of release, including a stay of 30 days or longer at a correctional facility. The facility is identified as a juvenile detention center, not a treatment center. Upon release from this detention center, they would be placed on probation with their parent or guardian. The juvenile is considered an incarcerated individual and must have their benefits suspended until release.

References:
ACWDL 13-18, 22-27, 24-04
MEM Letter 241

Sunset Date:
This policy will be reviewed for continuance on or by 8/31/2027

Approval for Release:

8-6-24

Rick Wanne, Director
Self-Sufficiency Services

Suspension of Benefits for Incarcerated Juveniles	Number	Page
	06.05.02	1 of 1

Effective/Revision Date:
8/1/2024

Background:
Medi-Cal eligibility must be suspended for incarcerated individual in correctional facilities under the age 21 who were Medi-Cal eligible at the time of incarceration. This section was updated to include the extension of juvenile suspension past one year.

Purpose:
This section provides requirements for suspending benefits for incarcerated juveniles.

Policy:
Juveniles incarcerated in a correctional facility must have their benefits suspended and not discontinued until their release. Suspense only ends on the release date, death, or if they are no longer considered juveniles (under age 21 or age 26 if former foster youth).

Annual and change in circumstances redeterminations are not required for the juvenile while incarcerated, but the worker shall update to the appropriate aid code if notified of a change such as aging out of a specific aid type. An ex parte redetermination is only required at release if one hasn't been completed in the past year.

Incarcerated juveniles are considered temporarily absent from the home and still part of the tax household unless there is evidence to the contrary.

Procedure:
Refer to Processing Guide 13 – Incarcerated Customers for suspension procedures.

References:
ACWDLs 10-06, 14-26, 21-22, and 24-04

Sunset Date:
This policy will be reviewed for continuance on or by 8/31/2027

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Incarcerated Juvenile Pre-Release Application Process	Number	Page
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Effective/Revision Date:
8/1/2024

Background:
Juveniles incarcerated in county correctional facilities (Juvenile Hall, a camp or ranch) for more than 30 days may begin the Medi-Cal application process while incarcerated so that they may have Medi-Cal eligibility immediately upon release, if possible. This section was revised to include direction to grant and immediately suspend eligibility when there is no release date on the referral form.

Purpose:
To provide staff with policy guidance for the juvenile pre-release application process.

Policy:
A. Notification
The County of San Diego Department of Probation will notify the incarcerated individual's parents during intake that they intend to obtain Medi-Cal for the incarcerated individual. If the parent requests an application or there is no response within 30 days, the Department will send referral form 14-88 to HHSA to Self-Sufficiency services to evaluate at the time of intake.

B. Evaluation
If there is an active case, suspense procedures apply. If there is no active case, it should be treated as a mail-in application request with the referral date serving as the date of application and the release date as the beginning date of aid. Juveniles with no release date on the referral shall be evaluated and if eligible, granted and immediately suspended until a release date is communicated by the Department of Probation.

C. Communication with Department of Probation
Use form 14-88 HHSA to communicate to the San Diego County Probation Department the outcome of the eligibility determination or if the determination cannot be completed prior to the release date, at least ten days prior to the scheduled release via secure email to the probation contact on the form.

D. Release Date Changes
When a release date changes, the Probation Department will send a modified referral form with the new date. Change the beginning date of aid to the new release date.

NOTE: Some individuals may have shorter incarcerations and the referral form will reach the HSS very close to the release date. The HSS must make every effort to grant the case prior to release.

E. Notice of Action
When notifying the incarcerated juvenile's family of granting or suspense of benefits, send a copy of all notices to the youth in the county correctional facility as well if the address is known. Send notices for incarcerated juveniles in cases by themselves or adults incarcerated in a juvenile facility to the correctional facility if known, if not then use the last known address.

Procedure:
Suspension procedures are in the Incarcerated Customers Processing Guide section 9.

References:
ACWDL 07-34 and 24-04

Sunset Date:
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Approval for Release:



Rick Wanne, Director
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